

Newcastle upon Tyne Corporation Act, 1956

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CHAPTER lxxxi

An Act to confer further powers upon the lord mayor aldermen and citizens of the city and county of Newcastle upon Tyne and the stewards and wardens committee of the Town Moor in the city in relation to the Town Moor to confer further powers upon the Corporation in relation to the local government health improvement and finances of the city and for other purposes. [2nd August 1956.]

WHEREAS the city and county of Newcastle upon Tyne (hereinafter referred to as "the city") is a county borough under the government of the lord mayor aldermen and citizens of the city (hereinafter referred to as "the Corporation"):

And whereas there is within the existing city a tract of land containing about one thousand and one hundred acres bearing in different parts different names but ordinarily and collectively called and hereinafter referred to as "the Town Moor":

And whereas the Corporation are or claim to be entitled to the soil of the Town Moor for an estate in fee simple but the same is subject to a right or benefit of herbage in the resident freemen or burgesses of the city and the resident widows of deceased freemen or burgesses of the city (ordinarily called and hereinafter referred to as "the freemen") which right or benefit is known as and is in this Act called "herbage right":

And whereas by the Newcastle upon Tyne Town Moor Act 1774 provisions were enacted for and in relation to the enjoyment management and improvement of the surface of the Town Moor and within certain limits the enclosure thereof:

And whereas by the Newcastle upon Tyne Improvement Act 1870 (hereinafter referred to as "the Act of 1870") a committee

(hereinafter referred to as "the stewards committee") of the stewards and wardens of the companies of the city as representing the interests of the freemen were constituted and were by that Act authorised and required to act for and on behalf of the said stewards and wardens and freemen for all purposes relating to the Town Moor:

And whereas under the provisions of a royal charter granted by His Majesty King James the First and of subsequent Acts including the Act 7 & 8 Geo. 4 c. lvi and the Act 30 & 31 Vict. c. vii (hereinafter referred to as "the Act of 1867") the Corporation are entrusted with the management of an ancient charity in the city known as the Hospital of Saint Mary Magdalene and consisting of a master appointed by the Corporation and certain brethren appointed from among the freemen:

And whereas the hospital and other buildings (hereinafter referred to as "the hospital") forming part of the endowment of the said charity are by virtue of the Act of 1867 vested in the Corporation:

And whereas the hospital has become unsuitable and out of date as a residence for the said master and brethren and it is expedient that a more commodious hospital should be provided for the purposes of the said charity:

And whereas a suitable site for a new hospital can be provided on the Town Moor and it is expedient that the Corporation and the stewards committee should be empowered to appropriate and convey to the trustees of the said charity (hereinafter referred to as "the trustees") a portion of the Town Moor containing about 3.735 acres for such new hospital and that the trustees should be empowered to accept the same:

And whereas it is expedient that the Corporation should be empowered to appropriate certain land in the city belonging to them and of an equivalent area to be added to and form part of the Town Moor:

And whereas King's College in the University of Durham have erected a college and other buildings on and occupy lands in the city adjoining a portion of the Town Moor:

And whereas it is expedient that the Corporation and the stewards committee should be empowered as in this Act provided to appropriate and convey to the said college a portion of the Town Moor containing about one hundred and thirty-one square yards in exchange for an equal area of land belonging to the said college and to provide that such area of land shall be added to and form part of the Town Moor:

And whereas it is expedient that the other powers contained in this Act should be conferred on the Corporation and that the other provisions therein contained should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Local Government Act 1933 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I

PRELIMINARY

1. This Act may be cited as the Newcastle upon Tyne Short title.
Corporation Act 1956.

2. This Act is divided into Parts as follows :—

Act divided
into Parts.

Part I—Preliminary.

Part II—Town Moor.

Part III—Finance.

Part IV—Miscellaneous.

Part V—General.

3.—(1) In this Act the several words and expressions to which Interpretation.
meanings are assigned by sections 90 and 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless there be something in the subject or context repugnant to such construction the following words and expressions have the several meanings hereby assigned to them respectively :—

“ the Act of 1933 ” means the Local Government Act 1933 ;

“ the Act of 1936 ” means the Public Health Act 1936 ;

“ the appointed day ” has the meaning which is assigned to it by section 18 (The appointed day) of this Act ;

“ the city ” means the city and county of Newcastle upon Tyne ;

“ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly ;

“ the Corporation ” means the lord mayor aldermen and citizens of the city acting by the council ;

“ the council ” means the council of the city ;

“ daily penalty ” means a penalty for each day on which any offence is continued after conviction ;

PART I
—cont.

“ the general rate fund ” means the general rate fund of the city ;

“ the town clerk ” “ the medical officer ” and “ the sanitary inspector ” mean respectively the town clerk the medical officer of health and any sanitary inspector of the city and include respectively any person duly appointed by the Corporation to discharge temporarily the duties of the town clerk the medical officer and any sanitary inspector.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

TOWN MOOR

Interpretation
of Part II.

4. In this Part of this Act—

“ the Act of 1774 ” means the Newcastle upon Tyne Town Moor Act 1774 ;

“ the Act of 1870 ” means the Newcastle upon Tyne Improvement Act 1870 ;

“ the signed plans ” means the plans which have been signed in triplicate by Sir Rhys Hopkin Morris the chairman of the committee of the House of Commons to whom the Bill for this Act was referred of which plans one copy has been deposited in the office of the Clerk of the Parliaments House of Lords one copy in the Private Bill Office of the House of Commons and one copy with the town clerk at his office ;

“ the stewards committee ” means the committee for the time being constituted in accordance with section 6 (Committee of stewards and wardens) of the Act of 1870 ;

“ the trustees ” means the trustees for the time being of the charity known as the Hospital of Saint Mary Magdalene in the city.

Power to
Corporation
to convey
lands for
hospital site
and provision
of lands in
lieu.

5.—(1) Notwithstanding anything contained in the Act of 1774 or in the Act of 1870 the Corporation and the stewards committee may upon and subject to such terms and conditions as they think fit appropriate and convey to the trustees freed and discharged from all herbage right the lands forming part of the Town Moor containing 3·735 acres or thereabouts adjoining Claremont Road and Hunters Road in the city and coloured

pink on the signed plans as a site for the erection of new hospital buildings and the trustees may accept and hold the same for the purpose aforesaid.

PART II
—cont.

(2) Upon the execution of such conveyance all herbage right and all rights of way and rights of user in or upon or over the lands so conveyed shall be by virtue of this Act wholly extinguished.

(3) As from the execution of such conveyance the lands belonging to the Corporation at Fawdon in the city containing 4.26 acres or thereabouts and coloured green on the signed plans shall by virtue of this Act be held by the Corporation upon and for the same uses intents and purposes and under and subject to the same terms and conditions rights powers and privileges upon for under and subject to which the Town Moor is vested in and held by them and shall for all purposes be deemed part thereof.

6.—(1) Notwithstanding anything contained in the Act of 1774 or in the Act of 1870 the Corporation and the stewards committee may appropriate and convey to the council of King's College Newcastle upon Tyne in the University of Durham freed and discharged from all herbage right the portion of the Town Moor comprising one hundred and thirty-one square yards or thereabouts and coloured blue on the signed plans and upon the execution of such conveyance all herbage right and all rights of way and rights of user in or upon or over the said portion so conveyed shall be by virtue of this Act wholly extinguished.

Exchange of
land with
King's College.

(2) In exchange for the said portion of the Town Moor so conveyed the said council of King's College shall as soon as is reasonably practicable after the execution of such conveyance convey to the Corporation free from any covenants restrictions and conditions if any so far as the same are applicable thereto the lands comprising one hundred and thirty-one square yards or thereabouts and coloured brown on the signed plans and upon the execution of such secondly-mentioned conveyance the said lands shall by virtue of this Act vest in and be held by the Corporation upon and for the same uses intents and purposes and under and subject to the same terms and conditions rights powers and privileges upon for under and subject to which the Town Moor is vested in and held by them and shall for all purposes be deemed part thereof.

(3) The portion of the Town Moor so conveyed shall be held by the said council of King's College upon the same trusts and subject to the same covenants restrictions and conditions if any so far as the same are applicable as the said lands exchanged therefor.

PART III

FINANCE

Power to
borrow.

7.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall repay the sum so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed by this section for the repayment of any money borrowed shall as respects that money be the fixed period for the purposes of the said Part IX.

Sheriff's
allowances.

8. The Corporation may pay to the sheriff of the city such remuneration as they think reasonable.

Power to
Corporation
to borrow etc.
for recon-
struction of
corporate
land.

9. The layout and development of any corporate land (as defined by section 305 of the Act of 1933) for the time being belonging to the Corporation and the alteration enlargement improvement extension reconstruction or rebuilding of any existing building thereon shall be purposes for which the Corporation may borrow or may expend money out of the general rate fund.

Amendment
of section 51
of Newcastle
upon Tyne
Corporation
Act 1952.

10. Section 51 (Amendment of section 131 of General Powers Act of 1935) of the Newcastle upon Tyne Corporation Act 1952 shall be read and have effect as if in paragraph (b) of that section for the words "fifteen thousand pounds" there were substituted the words "twenty thousand pounds" and as if for the words "unless a greater sum shall in any case be allowed by the Minister of Housing and Local Government" there were substituted the words "unless a greater sum shall be generally authorised for the purposes of this section by the Minister of Housing and Local Government or shall be allowed by him in any particular case".

Expenses
of public
entertainment
etc.

11. The Corporation without prejudice to any other powers vested in them may make reasonable payments for or in connection with—

- (a) the provision of public entertainment on the occasion of or otherwise in connection with public ceremony or rejoicing;

- (b) the arrangement and conduct of ceremonies relative to or arising out of any statutory functions of the Corporation ;
- (c) refreshments for members of the council and representatives of local authorities and other bodies or for other persons attending conferences or meetings convened by the council ;
- (d) the presentation of the freedom of the city to persons whom the council may resolve to admit as honorary freemen.

PART III
—cont.

PART IV

MISCELLANEOUS

12. Notwithstanding anything contained in the Public Libraries Acts 1892 to 1919 the powers of the Corporation under those Acts in relation to any library provided by them under those Acts shall include—

Return of
library books.

- (1) the power to charge such reasonable sum as the Corporation may prescribe for the reservation of a book ;
- (2) the power to prescribe a period not being less than seven days within which any book borrowed from such library must be returned thereto ;
- (3) the power to recover from any person who fails within such prescribed period to return to the said library any book so borrowed such reasonable sum as the Corporation may prescribe in respect of each week or portion of a week in which he so fails to return such book together with any expenses incurred by the Corporation in sending to such person notices in respect of such book ;
- (4) the power to prohibit any such person from borrowing any other book from the said library or from any other library provided by the Corporation under those Acts until such person has paid any such sum as is due to the Corporation under paragraph (3) of this section ;
- (5) the power to prescribe different periods and charges for the purposes of this section in relation to different books or kinds of books :

Provided that the sums prescribed by the Corporation for the purposes of paragraph (3) of this section shall not exceed sixpence or such greater sum as may be approved from time to time by the Minister of Education.

PART IV
—cont.Prohibition
of sale of
verminous
articles.

13.—(1) No dealer shall in the city—

- (a) prepare for sale ;
- (b) sell or offer or expose for sale ; or
- (c) deposit for sale or preparation for sale ;

any household article if it is to his knowledge verminous or if by taking reasonable precautions he could have known it to be verminous.

(2) If any household article which is verminous is on any premises in the city—

- (a) being prepared or offered by a dealer for sale ; or
- (b) exposed by a dealer for sale or deposited by a dealer for sale or preparation for sale ;

the medical officer or the sanitary inspector may cause the article to be disinfested or destroyed as the case may require and if necessary for that purpose to be removed from the premises and the Corporation may recover from the dealer the expenses incurred by the medical officer or the sanitary inspector in taking any action under this subsection.

(3) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds.

(4) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(5) For the purposes of this section—

- (a) the expression “dealer” means a person who trades or deals in any household article ;
- (b) the expression “household article” means an article of furniture bedding or clothing or any similar article ;
- (c) the expression “preparation for sale” shall not include disinfestation.

Extension of
power to
maintain burial
grounds.

14.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

- (a) to put and keep in order any tombstone therein ;
- (b) to level any grave therein or remove any tombstone or movable memorial on any grave therein or the railings surrounding any grave or tombstone therein :

Provided that the Corporation shall not remove any headstone under the powers conferred by paragraph (b) of this subsection unless it is in a dilapidated condition.

(2) Before exercising the powers conferred by paragraph (b) of the foregoing subsection the Corporation shall give notice of their intention to do so—

- (a) by publishing the notice once in each of two successive weeks in a local newspaper circulating in the city with an interval between each publication of not less than six clear days ;
- (b) by displaying the notice in a conspicuous position in the burial ground ; and
- (c) by serving the notice upon the owner of the grave or upon a relative of a deceased person whose remains are interred therein if after reasonable inquiry the name and address of such owner or relative can be ascertained.

(3) The said notice shall—

- (a) contain brief particulars of the Corporation's proposals and if necessary specify an address at which full particulars of the proposals can be obtained ;
- (b) specify the date on which it is intended that the Corporation shall begin to carry out the proposals which shall not be earlier than the fourteenth day after the last publication of the notice in a newspaper as aforesaid or the twenty-first day after the notice is first displayed in the burial ground as aforesaid or where notice is served under paragraph (c) of subsection (2) of this section the twenty-first day after such service ;
- (c) state the effect of the next following subsection.

(4) If notice of objection to the proposals and of the ground thereof is given to the Corporation before the date so specified and is not withdrawn before the expiration of fourteen days from that date the proposals to which the objection relates shall not be carried out without the consent of the Minister of Housing and Local Government.

(5) Unless within three months after the first publication of the notice as required by paragraph (a) of subsection (2) of this section or where notice is served under paragraph (c) of that subsection within three months after such service whichever is the later any tombstone memorials or railings removed under this section are claimed the Corporation may put them to such use as they think appropriate or destroy them.

(6) Where any tombstone is removed under this section the Corporation may erect at their own expense in substitution a tombstone of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause to be made a record of each tombstone and memorial removed under this section and deposit a copy of the record with the Registrar-General.

PART IV
—cont.

(8) Where a faculty or licence of a consistory court is required for any work nothing in this section shall relieve the Corporation of their obligation to obtain such a faculty or licence and where the Corporation obtain a faculty or licence for any work subsections (2) to (5) of this section shall not apply to that work.

(9) In this section—

“burial ground” includes a cemetery;

“grave” includes a grave space;

“tombstone” includes a kerb and any fixed memorial to the dead.

Hairdressers
and barbers.

15.—(1) As from the appointed day no person shall carry on the business of a hairdresser's or barber's shop on any premises in the city unless he and those premises are registered by the Corporation.

(2) Subject to the provisions of this section any person who makes an application in that behalf and furnishes the Corporation with particulars of his name and residence and of the premises in respect of which he desires to be registered shall be registered in respect of those premises by the Corporation in a book kept for the purpose and on so registering any person the Corporation shall issue to him a certificate of registration.

(3) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of premises registered under this section and of the instruments towels materials and equipment used therein; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(4) If any person carries on business in contravention of subsection (1) of this section or contravenes the provisions of any byelaw made under subsection (3) of this section he shall be liable—

(a) in the case of a contravention of subsection (1) to a penalty not exceeding twenty pounds and a daily penalty not exceeding five pounds; and

(b) in the case of a contravention of the provisions of a byelaw to a penalty not exceeding five pounds and the court by which he is convicted may (in lieu of or in addition to imposing a penalty) order the suspension or the cancellation of his registration.

(5) Where the registration of any person is cancelled by order of a court under the last foregoing subsection—

(a) he shall within seven days deliver up to the Corporation his certificate of registration and if he fails to do so he

shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings ;
and

PART IV
—cont.

(b) he shall not again be registered by the Corporation under this section except in pursuance of a further order of a magistrates' court made on his application.

(6) A person registered under this section shall keep a copy of the said byelaws and of his certificate of registration displayed in the premises in respect of which he is registered and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings.

(7) Where an offence punishable under this section which has been committed by a body corporate is proved to have been committed with the consent or connivance or be attributable to any neglect on the part of any director manager secretary or other similar officer of the body corporate or any person purporting to act in such capacity he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(8) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

PART V

GENERAL

16. As respects byelaws made under section 15 (Hairdressers and barbers) of this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister of Housing and Local Government. Confirming authority for byelaws.

17.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression "department" in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers mentioned therein.

(3) In this section the expression "Minister of the Crown" has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

PART V
—cont.The appointed
day.

18.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) The Corporation shall cause to be published in a local newspaper circulating in the city notice—

- (a) of the passing of any such resolution and of the date fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(3) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

Restriction
on right to
prosecute.

19. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation.

Appeals.

20.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the

Corporation themselves execute the work or take the action ; and

PART V
—cont.

- (ii) that person may carry on that business and use those premises for that purpose.

21. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act.

Protection of
members and
officers of
Corporation
from personal
liability.

22.—(1) The sections of the Act of 1936 mentioned in Part I of the schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application
of general
provisions of
Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to section 13 (Prohibition of sale of verminous articles) of this Act.

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to section 13 (Prohibition of sale of verminous articles) and section 15 (Hairdressers and barbers) of this Act.

23. All costs charges and expenses of and incidental to the applying for and the preparing obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be repaid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act for that purpose.

Costs of
Act.

SCHEDULE

SECTIONS OF ACT OF 1936 APPLIED

PART I

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284	Authentication of documents.
285	Service of notices etc.
286	Proof of resolutions etc.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

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Sections applied to section 13 of this Act

Section	Marginal note
293	Recovery of expenses etc.
299	Inclusion of several sums in one complaint etc.

PART III

Section applied to sections 13 and 15 of this Act

Section	Marginal note
287	Power to enter premises.

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Table of Statutes referred to in this Act

Short title	Session and chapter
Newcastle upon Tyne Town Moor Act 1774 ...	14 Geo. 3 c. 105 (Local).
Newcastle upon Tyne Improvement Act 1870 ...	33 & 34 Vict. c. cxx.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Ministers of the Crown (Transfer of Functions) Act 1946.	9 & 10 Geo. 6 c. 31.
Newcastle upon Tyne Corporation Act 1952 ...	15 & 16 Geo. 6 & 1 Eliz. 2 c. xl.

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